U.S. Small Business Administration
Your Small Business Resource

U.S. SMALL BUSINESS ADMINISTRATION
South Florida District Office
100 South Biscayne
Boulevard, 7TH Floor
Miami, Florida 33131-2011

Francisco A. Marrero
District Director
Gilbert Colón
Deputy District Director

September 19, 2012

Ms. Raquel Mingo
Contracting Officer
482 MSB/CONF/LGC
Department of the Air Force
29050 Coral Sea Blvd.
Homestead ARB, FL 33039-1299

Acceptance Letter Example

Dear Ms. Mingo:

This letter is to serve as acceptance of the offer submitted by your agency on **September 19, 2012**. In accordance with Section 8(a) of the Small Business Act (15 USC 637(a)(1)) and the Federal Acquisition Regulation (FAR) Part 19.8, and the executed Partnership Agreement between the U.S. Small Business Administration (SBA) and the **Department of the Air Force**, SBA hereby accepts your offer of the requirement for **"Furnish all plant, labor, services, tools, materials, equipment, transportation, supervision and all miscellaneous requirements to install/erect eleven (11) flag poles"** on behalf of:

Curtis Painting and Waterproofing
3001 w. Hallandale Beach Blvd., Suite 316
Hallandale, FL 33009-515

The estimated dollar value of this procurement (including all options) will be **$80,178.67**. The assigned NAICS Code is **238990**, with a corresponding size standard of **$14.0 M**.

We have conducted an analysis of this requirement in accordance with the provisions set forth in Title 13 of the Code of Federal Regulations (13 C.F.R. § 124.504(c)), *Adverse Impact*. The results of the analysis revealed that: (1) No small business performed this requirement for at least 24 months; (2) No small business was performing the requirement at the time this requirement was offered to the 8(a) BD Program, or the small business's performance of the requirement ended within 30 days of the procuring activity's offer of the requirement into the 8(a) BD Program; (3) and the dollar value of the requirement that the small business is or was performing does not constitute 25 percent or more of its most recent annual gross sales (including those of its affiliates).

Raquel Mingo/U.S. Department of the Air Force

As such, the acceptance of this requirement for the 8(a) BD Program will have no adverse impact on an individual small business, a group of small businesses located in a specific geographical location, or other small business programs. As stated, you have designated a North American Industry Classification System (NAICS) Code of **238990** for this requirement. This NAICS Code should not be changed without prior coordination with this office. The assigned SBA Requirement Number is **0455/12/213243/01**. Please reference this number should you need to contact this office relative to this procurement. The SBA Requirement Number should also be referenced on any resultant contract award documents.

Pursuant to the executed Partnership Agreement Department of the Air Force is authorized to negotiate directly with the 8(a) BD Participant. SBA reserves the right to be present at an Agency's negotiations with the 8(a) BD Participant.

Under the terms and conditions of the Partnership Agreement, you are to execute and distribute one copy of the contract, including task orders, modifications, and purchase orders to our office within 15 business days of the award. The SBA must be consulted prior to any changes that affect the scope of the contract.

In addition, **Department of the Air Force** shall retain the responsibility for compliance with the limitations on subcontracting requirements and all applicable provisions of FAR Section 52.219-14. Upon detecting any violations of the Ostensible Subcontracting rule, procuring agencies should immediately notify the SBA's Headquarters office via an email to: 8(a) Program@sba.gov.

In the event that this requirement does not result in a contract award, please notify the SBA's District Office.

If you have any questions regarding this acceptance letter, please contact Jeffery Campbell at: (305) 536-5521 Ext. 156 or via E-mail to Jeffery.campbell@sba.gov.

Thank you for your continued support of the 8(a) BD Program.

Sincerely,

Eve Horner

Eve Horner
8(a) Business Opportunity Specialist
8(a) Business Development